

		that. Even if the parties had requested the court to reserve jurisdiction under section 664.6, there would be no settlement of attorney fees to enforce, because terms were not originally agreed upon by the parties. (See <i>Levitz v. The Warlocks</i> (2007) 148 Cal.App.4th 531, 535 [“A settlement with open material terms is not a ‘conditional settlement.’ To the contrary, it is not a settlement at all because, like all contracts, it is not binding until the settling parties agree on all its material terms.”].) Further, plaintiff “must follow the procedures outlined in [California Rules of Court, rule 3.1385] subdivisions (a) and (b) even if the parties settle the case and agree to dismiss under the provisions of Code of Civil Procedure section 664.6.” (Advisory Com. com., Cal. Rules of Court, rule 3.1385.) And, “Code of Civil Procedure section 664.6 allows for but does not mandate the dismissal of cases with conditional settlements either upon stipulation of the parties or on the court’s own motion. Subdivision (c) provides an alternative process for cases with a conditional settlement in which dismissal is not sought under Code of Civil Procedure section 664.6” (<i>Id.</i>) Because the court has lost jurisdiction and the issues are not material to the motion, the court will not decide whether the misrepresentation is material or potentially subject to sanctions, whether a true settlement or only an agreement to agree was reached, arguments concerning enforceability of the 998 offer, and/or whether some other procedure was viable. The court rules only that the chosen course of action was not. Clerk to give notice.
5	Holcomb vs. General Motors, LLC 30-2026-01559179-CU-NP-CJC	Motion to Deem Vexatious Litigant Continued to 10/2/2025 for parties to comply with California Rules of Court.
6	Boyd vs. Fernandez 30-2025-01523882-CU-PA-CJC	Motion to Strike Portions of First Amended Complaint Defendant/cross-complainant Alejandro Fernandez’s Motion to Strike Portions of Plaintiff’s First Amended Complaint is DENIED in part and GRANTED in part with 10 days leave to amend.

		The Court GRANTS Plaintiff's request for judicial notice. The FAC does not allege Plaintiff voluntarily consumed alcoholic beverages to the point of intoxication knowing from the outset he must thereafter operate a motor vehicle. (See <i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 899 [citation omitted].) The Court GRANTS Defendant/cross-complainant's Motion to Strike with respect to Plaintiff's request for punitive damages. A determination of whether the specific felonies alleged to have been committed by Defendant may ultimately establish the basis for attorney fees is not appropriate at this stage. The Court DENIES Defendant/cross-complainant's Motion to Strike with respect to paragraphs 16 and 18 and the allegations and prayer regarding attorney fees pursuant to Civil Code section 1021.4. If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean copy of the amended pleading. Clerk to give notice.
7	Vasquez vs. Mercedes-Benz USA, LLC 30-2026-01559886-CU-BC-CJC	Demurrer to Complaint Defendant Mercedes-Benz USA, LLC's Demurrer to the Complaint is OVERRULED. Defendant is ORDERED to file its answer within 5 days. Plaintiff alleges sufficient facts to support her Song Beverly claims. Plaintiff alleges the vehicle was <i>purchased</i> with an "express written warranty." (Compl., ¶ 11.) Thus, Plaintiff has sufficiently alleged facts to support a claim the vehicle qualified as a "new motor vehicle" and the claim does not stem from any warranty provided from the original lease of the vehicle. (See <i>Rodriguez v. FCA US LLC</i> (2024) 17 Cal.5th 189, 205 [vehicle sold with balance left on new car warranty not "new motor vehicle" unless new warranty issued with sale.] Clerk to give notice.
8	Choi vs. Oh 30-2026-01547737-CU-PO-CJC	Demurrer to Complaint Defendants David Byungik Oh and The Happier Church's Demurrer to Plaintiffs Yoon Suk Choi and Jea H. Kim aka Joshua Kim's Complaint is OVERRULED in part and SUSTAINED in part with 10 days leave to amend.